THE STATE
versus
ELVIN SAUNGWEME DONGO
and
DELLON DAVID BALANI

IN THE HIGH COURT OF ZIMBABWE
TOMMASI J
HARARE:25 AUGUST 2026.

Assessors: T Mpofu

J Mutombwa

Criminal: Application for discharge at the close of the State's case

Mr *T. Wazvaremhaka* with Ms *A. Munyeriwa* and Ms *T. Shonhayi* for the State

Mr. *M.D. Hungwe* with Mr *B. Maruva* for the 1st and 2nd accused

TOMMASI J: The application before the court is one for discharge at the close of the State's case, brought by the accused in terms of s 198(3) of the Criminal Procedure and Evidence Act [Chapter 9:07]. The section provides that**:**

> **"**If at the close of the case for the prosecution the court considers that there is no evidence that the accused committed the offence charged in the indictment, summons or charge, or any other offence of which he might be convicted thereon, it shall return a verdict of not guilty."

The court is mindful of the fact that the section is couched in peremptory terms and it should not refuse a discharge of the accused and put them on their defence to supplement the state's case.

BACKGROUND FACTS

The accused persons were arraigned before this court on a charge of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. The State alleges that, on 12 March 2020, the two accused persons, in association with Munyaradzi Mawadze

(whose trial has since been separated), hatched a plan to rob and kill the deceased person, Sipho Million Mncube. There is no direct evidence and the state's case is purely based on circumstantial evidence.

The State called a total of eight (8) witnesses, namely Tinashe Jabbs, Evans Chitsungo, Tembelani Dave Masina, Simon Maxwell Musona, Luckson Saurowe, Zibusiso Ngwenya, Tendai Machirori and Terrence Muunze. In addition to the oral evidence of the eight witnesses, the State also tendered certain documentary and forensic evidence in terms of section 314 of the Criminal Procedure and Evidence Act, including the post-mortem report and the DNA forensic report, with the consent of the accused persons.

The forensic evidence was particularly relevant to the blood-stained clothes recovered from the 1st accused's residence and the blood stained knife recovered in Waterfalls, establishing that the blood on those exhibits matched the DNA profile of the deceased. Thus, the scientific evidence established a connection between the deceased and those particular exhibits.

The post-mortem report authored by Dr Yoandry Olay Mayedo established the cause of death of the accused. The cause of death was recorded as "acute anaemia, severe neck trauma due to incised wound," which, in ordinary terms, meant that the deceased had suffered a incised wound to the neck and had bled to death. The report therefore established the fact of death and the medical cause thereof. Given that the blood-stained knife recovered from the bushy area of Waterfalls was found to match the deceased's DNA, and having regard to the established cause of death as confirmed by the post-mortem examination, it becomes common cause that the recovered knife was the weapon used to inflict the injury upon the deceased.

The evidence of Tinashe Jabbs, Evans Chitsungo and Tembelani Dave Masina may conveniently be considered together. The three witnesses were respectively a business associate, friend and younger brother of the deceased. Their evidence concerned the circumstances surrounding the deceased's disappearance, the subsequent efforts made to trace him, and their encounters and interactions with Munyaradzi Mawadze in the period that followed.

Jabbs testified that the deceased had collected an iPhone 11 Pro Max from him for purposes of onward sale and thereafter failed to return either with the phone or the proceeds thereof. Chitsungo similarly gave evidence concerning cell phones which had been entrusted to the

deceased for purposes connected with their business and described the events which followed when the deceased could no longer be located. Masina, the deceased's younger brother, also participated in the search for the deceased and gave evidence concerning his interactions with Mawadze, including the recovery of certain cell phones and his subsequent identification of a cellphone which the police alleged belonged to the deceased. He identified the cell phone which was handed to him in court as the cell phone of his deceased brother by pointing out a small crack on the screen near the touch button. No IMEI number or serial number was provided. This evidence does not reliably prove that the cell phone belonged to the deceased.

A common feature of the evidence of these three witnesses is that it largely narrates their respective encounters with Mawadze and the steps taken by them in an attempt to trace the deceased and recover the cell phones which had been entrusted to him. Their evidence therefore provides background and context to the events which unfolded following the deceased's disappearance.

However, of greater significance is that none of the three witnesses had interacted with either of the accused persons in connection with the deceased's disappearance or death. None witnessed any meeting or communication between the accused persons and the deceased, nor did any of them provide direct evidence linking either accused to the commission of the offence. Their evidence concerning Mawadze and the recovery of the cell phones similarly does not, without more, establish any connection between those events and the accused persons.

Accordingly, while the evidence of the first three witnesses assists in setting out the sequence of events following the deceased's disappearance, it is of limited relevance in determining whether the accused persons participated in his murder. The determination of the accused persons' involvement must therefore rest on the evidence which directly or circumstantially connects them to the deceased, the scene of the offence, or the instruments and other evidence associated with his death.

Simon Maxwell Musona was the fourth State witness. He was also engaged in the business of selling cell phones together with the deceased and the first three witnesses.

Musona testified that on the relevant day the deceased had taken three iPhone 11 Pro Max cell phones, each allegedly valued at US$1,500, for purposes of onward sale. His evidence concerning the subsequent search for the deceased and recovery of cell phones was broadly

similar to that of the first three witnesses and involved interactions with Munyaradzi Mawadze.

Musona stated that cellphones were recovered through Mawadze. However, he was not personally present when the recoveries were made. He further stated that he had purchased the phones from South Africa, but no documentary evidence proving their importation was produced before the court.

Of particular relevance, Musona testified that he went to the residence of the 2nd accused, accompanied by Mawadze, while searching for his cellphone. The 2nd accused informed him that he did not possess any cellphone belonging to Musona and had not received any cellphone from Mawadze.

Musona stated that he could identify his cellphone by its colour and serial number, but during cross-examination he gave a description of the colour which was apparently incorrect. He further testified that an empty box for the missing iPhone 11 was recovered at Mawadze's residence and that the box allegedly corresponded with the IMEI number of the missing phone. However, the box was not produced in court.

Musona further stated that the IMEI details had been recorded in his shop's stock records, but those records were allegedly destroyed by fire. Consequently, no documentary evidence was produced to establish conclusively that the cellphone placed before the court belonged to Musona or that it had been in the deceased's possession before his death.

The evidence of the four police witnesses, namely Luckson Saurowe, Zibusiso Ngwenya, Tendai Machirori and Terrence Muunze, may conveniently be considered according to the accused persons to whom their respective evidence related. Their evidence concerned the subsequent police investigations, the arrests of the accused persons, searches conducted at their respective residences, and the recovery and pointing out of various exhibits alleged to be connected to the deceased.

The evidence concerning the 1st accused was given by Saurowe and Muunze. Saurowe testified that he was a member of the CID Homicide Section and led a team of police officers which arrested the 1st accused. Following the arrest, the police proceeded to search his residence. During the search, a black satchel was recovered behind the door of the 1st accused's bedroom. The satchel contained a T-shirt and jean with blood stains on it which subsequent forensic examination revealed was the blood of the deceased. A dismantled

cellphone was also recovered from underneath the bed of accused 1. This evidence was corroborated in material respects by Muunze, who was the investigating officer and was also part of the police team involved in the arrest of the 1st accused and the search of his residence.

Muunze testified that the recovery of both the clothing items and the cell phone was recorded in his police notebook. An extract of the notebook was handed into evidence reflecting his signature and that of accused 1. He later completed a siezure form 390 reflecting the recovery which was signed by him, accused 1 and Machirori who was not present when the items were seized. This form was also handed into evidence.

Regarding the dismantled cellphone, he explained that its condition made it impossible to ascertain its IMEI number and that he did not personally know the IMEI number of the cellphone allegedly used by the deceased. Consequently, the identification of that cellphone as belonging to the deceased was based on its physical appearance and the identification made by Masina. It was already indicated above that the evidence in regard to this cellphone is not reliable.

Saurowe further testified that, during the course of the investigations, the 1st accused pointed out the location where the deceased's body was subsequently recovered.

The evidence relating to the 2nd accused was given by Ngwenya, Machirori and Muunze. Their evidence concerned two significant aspects of the investigation, namely, the alleged recovery of a cellphone from the 2nd accused's residence and the subsequent pointing-out and recovery of a blood stained knife in the bushy area of Waterfalls.

Machirori testified that, on the date of the 2nd accused's arrest, the police proceeded to his residence and conducted a search during which an iPhone 11 Pro Max was allegedly recovered. The State's case was that this was the cellphone which had been in the possession of the deceased before his death. Machirori stated that he had previously been furnished with the cellphone's IMEI number by Muunze and had recorded it in his diary. However, the diary containing the alleged IMEI information was not produced before the court. Consequently, he conceded under cross-examination that there was no documentary evidence establishing that he had been furnished with the IMEI number before the cellphone was recovered.

Machirori further testified that the recovery of the cellphone was recorded in a police diary and that the 2nd accused signed the relevant entry acknowledging the recovery. The

identification of the cellphone was further weakened by the fact that it could not be switched on and the necessary process of extracting its IMEI number could therefore not be undertaken. Machirori accepted that the IMEI number would have provided the conclusive means of establishing whether the cellphone recovered was the particular cellphone previously possessed by the deceased. In its absence, the identification of the cellphone rested essentially upon its colour and physical appearance, neither of which constituted unique identifying features.

Ngwenya's evidence concerned the second aspect of the investigation. He testified that the 2nd accused pointed out a location in a bushy area in Waterfalls where a blood stained bread knife was recovered. Ngwenya stated that he was accompanied by Assistant Inspector Nyamuripa, Detective Sergeant Machirori and the 2nd accused when the pointing-out took place. The recovery of the knife was recorded in his police notebook. Machirori also gave evidence concerning this pointing-out and the recovery of the knife, substantially corroborating Ngwenya's account.

Muunze further testified that he had been furnished with the IMEI numbers of the cellphones allegedly used by the deceased and had subsequently provided those numbers to Machirori. However, the diary in which he claimed to have recorded this information was not produced before the court. He accepted the importance of the IMEI number in establishing the identity of a particular cellphone but maintained that the identification of the cellphone allegedly recovered from the 2nd accused ultimately depended upon the information available to the investigating team and the identification made by Musona.

Accordingly, the evidence concerning the 2nd accused followed the sequence of his arrest and the search of his residence, the alleged recovery of an iPhone 11 Pro Max, and thereafter the pointing-out which led to the recovery of the blood stained knife in Waterfalls. The evidence relating to the cellphone was, however, materially challenged by the absence of the alleged IMEI documentation and the inability to extract the IMEI number from the recovered device.

Taken as a whole, the police evidence thus concerns the investigative steps undertaken after the deceased's disappearance and the manner in which various items of potential evidential significance came to be recovered. Its weight and significance must ultimately be assessed together with the forensic evidence, the evidence concerning the pointing-outs, and the other

circumstances relied upon by the State in establishing the respective cases against the accused persons.

The bail proceedings form part of the record of these proceedings by virtue of s 117A (7) of the Criminal Procedure and Evidence Act. It provides as follows:

> **"(**7) The record of the bail proceedings, excluding the information referred to in subsection (5), shall form part of the record of the trial of the accused following upon such bail proceedings:
>
> Provided that if the accused elects to testify during the course of the bail proceedings, the court must inform him or her that anything he or she says may be used against him or her at his or her trial and such evidence becomes admissible in any subsequent proceedings."

The court is therefore entitled to have regard to the statements made by the accused persons in their respective bail affidavits. There is no basis, in the circumstances of this case, for the court to approach those statements with any reservation. The affidavits were placed before the court in the course of formal bail proceedings and, absent any evidence to the contrary, it is reasonable to proceed on the basis that the accused persons made the statements conscious of their right to remain silent and not to implicate themselves and with the benefit and guidance of their legal practitioners. The statements are accordingly part of the evidential material properly before the court and may be considered, together with the other evidence, in determining whether the State has established a case requiring the accused persons to be placed on their defence. Counsel for the accused, when asked to address the court on this issue, indicated that this evidence is not available to the State. I respectfully disagree.

THE LAW

The legal principles governing an application for discharge were set out in *S v Kachipare* 1998 (2) ZLR 271 (S) at 276–277, where the court held as follows:

> "There is sound basis for ordering the discharge of the accused at the close of the case for the prosecution, where:
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> (i) there is no evidence to prove an essential element of the offence: see Attorney-General v Bvuma & Anor 1987 (2) ZLR 96 (S) at 102F-G;
>
> (ii) there is no evidence on which a reasonable court, acting carefully, might properly convict: see Attorney-General v Mzizi 1991 (2) ZLR 321 (S) at 323B;
>
> (iii) the evidence adduced on behalf of the State is so manifestly unreliable that no reasonable court could safely act on it: see Attorney-General v Tarwirei 1997 (1) ZLR 575 (S) at 576G."

ISSUES FOR DETERMINATION

The issue before the Court is whether, applying the test in *S v Kachipare* 1998 (2) ZLR 271 (S), there is evidence upon which a reasonable court, acting carefully, might properly convict.

The following issues arise for determination:

1. Whether or not the State adduced evidence sufficient to establish each essential element of the offence charged.
2. Whether or not there is evidence upon which a reasonable court, acting carefully and properly directing itself, might properly convict the accused persons.
3. Whether or not the evidence adduced by the State is so manifestly unreliable that no reasonable court could safely rely upon it in determining the guilt of the accused.

ANALYSIS

The evidence led by the State, considered as a whole, cannot be characterised as so manifestly unreliable that no reasonable court could safely act upon it save for the evidence adduced in respect of the cellphones. It is acknowledged that certain aspects of the State case, particularly the identification of the cell phones and the absence of the corresponding IMEI records, have material shortcomings. No other evidence adduced or relied upon by the State would change the fact that the phones either belonged to the deceased or were amongst those phones given to the deceased on that fateful day.

There is objective forensic evidence linking the blood found on the clothing recovered from the 1st accused's residence, as well as that found on the knife pointed out by accused 2 and recovered in Waterfalls, to the deceased. The evidence of the police witnesses concerning the recovery of the clothing from the residence of accused 1, the pointing out of the deceased's body by the 1st accused and the pointing out of the knife by the 2nd accused is not so inherently improbable or contradictory as to be incapable of belief. At this stage, the Court is not required to determine whether the State's evidence is sufficient to secure a conviction, but whether it is so manifestly unreliable that no reasonable court could safely rely upon it.

It is necessary to bear in mind that the present enquiry is not whether the circumstantial evidence has, at this stage, excluded every other reasonable inference and established the

guilt of the accused persons beyond reasonable doubt. That will be the enquiry at the conclusion of the trial. The question presently before the court is whether the State has adduced evidence upon which a reasonable court, acting carefully, might properly convict.

The State's case is that the accused persons acted in association with Munyaradzi Mawadze. The legal basis upon which such liability may arise is contained in s 196A of the Criminal Law (Codification and Reform) Act [Chapter 9:23], which codifies the doctrine of common purpose. The section reads as follows:

> **"196A Liability of co-perpetrators**
>
> **(1)** If two or more persons are accused of committing a crime in association with each other and the State adduces evidence to show that each of them had the requisite *mens rea* to commit the crime, whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realisation of a real risk or possibility that a crime of the kind in question would be committed, then they may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator."

The significance of the above provision is that the State is not required, where there is evidence of common purpose, to establish which particular accused physically performed the act that caused the death of the deceased. Once there is evidence capable of establishing that the accused persons acted in association and possessed the requisite *mens rea*, the conduct of the actual perpetrator may be attributed to the co-perpetrators. Indeed, s 196A expressly provides that this may be so even where none of the accused persons is identified as the actual perpetrator. The *actus reus* of the crime may, in those circumstances, be imputed to each co-perpetrator.

The starting point in the present matter is the accused persons' own admissions made in their respective bail applications, which form part of the record. On their own versions, the accused persons placed themselves in the company of Mawadze on the material day. Their statements further reveal that they were together during the period in question and that they accepted cellphones which, according to their versions, were given to them by Mawadze to silence them.

Of particular significance is that the accused persons, by their own statements, place themselves at or in the vicinity of the scene and in the company of Mawadze at the time when the crime was committed. It is further their own admissions which make mention of a knife being used to inflict a fatal wound on the deceased in the close confines of a car in a remote place, while the deceased was sandwiched between accused 1 and Mawadze. This evidence is directly relevant to the factors identified in s 196A(2). According to their own accounts, it occurred on the very day and during the period in which the events giving rise to the death of the deceased unfolded.

There is a further feature of their own versions which cannot simply be ignored. Having placed themselves at the scene or in the company of the person with whom the State alleges they acted, at or about the time when the offence was committed, one is left to question why neither accused person reported the commission of the offence to the police or otherwise brought the matter to the attention of the authorities. If, as they now contend, they were merely present and were not participants in the events which culminated in the deceased's death, their admitted presence and association with Mawadze, coupled with their subsequent silence, constitute circumstances which a reasonable court is entitled to consider.

This is not to suggest that the accused persons bear an onus to prove their innocence or to explain away the State's case. The burden of proof remains throughout upon the State. However, where the accused persons' own statements place them in circumstances relevant to the commission of the offence, their conduct thereafter, including their failure to report what had occurred, forms part of the surrounding circumstances from which a court may draw such inferences as are reasonably open on the evidence.

The evidence relating to the pointing-out of the deceased's body must be considered in its proper context. Its significance lies not merely in the fact that the deceased's body was eventually recovered, as counsel for the defence submitted, but in the fact that the 1st accused demonstrated knowledge of its location. That knowledge assumes particular significance when considered together with the statement made by the 1st accused in his affidavit filed in support of his bail application. The submission that the 1st accused may have acquired knowledge of the location of the body only after the deceased's death must therefore be assessed against his own account of the events. At this stage, the court is concerned with reasonable inference. A reasonable inference does not include fanciful possibilities.

The pointing-out must further be considered alongside the forensic evidence. A T-shirt and pair of jeans were recovered from a satchel found in the 1st accused's room, and the blood stains on those items were forensically matched to the DNA profile of the deceased. The medical evidence established that the deceased sustained a severe incised wound and died as a result of acute anaemia arising from the loss of blood. When these facts are considered together with the 1st accused's demonstrated knowledge of the location of the deceased's body was, they are capable of giving rise to a *prima facie* inference that the 1st accused was present in circumstances connected with the killing of the deceased and that the deceased's blood may have been deposited on the clothing during the course of those events.

It was argued on behalf of the 1st accused that there was no evidence establishing that the clothing belonged to him or that he had subjective knowledge of the contents of the satchel. It was further suggested in cross-examination that the satchel and its contents may have been brought into the room by Mawadze. However, that proposition does not constitute evidence at this stage. The court cannot, in determining an application for discharge at the close of the State's case, treat propositions put to witnesses in cross-examination as facts in the absence of evidence supporting them. Whether the 1st accused will provide an explanation concerning the presence of the satchel and the blood-stained clothing is a matter which may properly fall for consideration at the end of the trial.

Put differently, these facts constitute *prima facie* evidence that he was present in circumstances which implicate him directly or indirectly in the commission of that crime. In terms of section 196A 2(a), this is indicative, although not necessarily decisive, of factors tending to prove that accused 1, who has been charged with committing a crime in association with his co-accused, together had the requisite *mens rea* to commit the crime.

The 1st accused having placed himself in the vehicle with Mawadze, the 2nd accused and the deceased at the material time, and having stated that he was seated at the back of the vehicle where the deceased and Mawadze were also seated, his explanation, if any, concerning his proximity to the events surrounding the deceased's death and the presence of the deceased's blood on clothing recovered from his room becomes a matter properly requiring consideration in his defence. The State's evidence cannot, at this stage, be said to be so manifestly unreliable that no reasonable court could act upon it.

The case against the 2nd accused must similarly be considered cumulatively. The evidence establishes that he pointed out the location in the bushy area at Waterfalls where the knife

was recovered. Forensic evidence established that blood found on that knife matched the DNA profile of the deceased. The significance of the pointing-out lies in the knowledge demonstrated by the 2nd accused of the location of an object subsequently forensically connected to the deceased and, when considered together with the medical evidence, capable of being connected to the instrumentality of the killing. Similarly fanciful or far-fetched speculation of how he had come to know of it cannot be entertained.

That knowledge is further reinforced by the admission made by the 2nd accused in his bail affidavit. In that statement, he placed himself in the company of the other persons at the material time and disclosed circumstances demonstrating his knowledge of how the knife came to be deposited at the location which he later pointed out. Thus, the evidence is not confined to the bare fact that a knife was recovered after a location was pointed out. The 2nd accused's own account is capable of connecting his knowledge of the location to the events surrounding the death of the deceased.

Of further significance is that, according to the material presently before the court, the 2nd accused was aware of the commission of the offence but did not report it. While the mere failure to report a crime does not, by itself, establish participation in that crime, it is a circumstance which may properly be considered together with the other evidence. In the present matter, his knowledge of the events, his presence with the other accused persons at the material time as disclosed in his bail affidavit, and his subsequent knowledge of the location where the knife was recovered are circumstances which, taken cumulatively, are capable of supporting an inference that he was associated with the events leading to the deceased's death.

The present evidence must therefore be approached based on its cumulative effect. The 2nd accused's knowledge of the location of the knife, the forensic evidence linking the knife to the deceased, and his own statement placing himself with the other persons at the material time constitute circumstances capable of implicating him directly or indirectly in the commission of the offence within the meaning of s 196A(2)(a). Whether those circumstances will ultimately prove participation beyond reasonable doubt is a matter for determination after all the evidence has been heard. For present purposes, however, they constitute evidence upon which a reasonable court, properly directing itself, could convict if the 2nd accused elected to remain silent.

The principles relating to circumstantial evidence and co-perpetrator liability, including those articulated in *Chitanga v The State* HMA 48-19, reinforce the position that participation may be established through conduct and circumstances demonstrating association with the commission of the offence and the requisite mental element. Equally, a conviction may rest upon circumstantial evidence where the proven facts, properly considered, support the inference sought to be drawn. The ultimate question at this stage is not whether the State has already proved the guilt of either accused beyond reasonable doubt, but whether there is evidence which, if accepted and left unanswered, could sustain a conviction. On the evidence presently before the court, that question must be answered in the affirmative.

DISPOSITION

In the result, the following order is made

1. The application for discharge by accused 1 and 2 is dismissed

2. Accused 1 and 2 are placed on their defence.